

25VECV05850 25VECV05850

County: los-angeles

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Case Number: 25VECV05850 Hearing Date: July 7, 2026 Dept: I

25VECV05850 LIKETY CAPITAL LLC vs MCJ

KITCHEN & BATH LLC, A LIMITED LIABILTiy COMPANY, et al.

July 7, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion for Terminating

Sanctions

I.

Background

On October

13, 2025, Plaintiff Likety Capital LLC ("Plaintiff") filed a complaint against Defendants MCJ Kitchen & Bath LLC ("MCJ Kitchen"), Jose Martin Hic Carney ("Carney")(collectively "Defendants"), and Does 1 to 10 alleging two causes of action: (1) breach of contract; and (2) common counts.

On June

5, 2026, Plaintiff filed the instant motion to enter default and for further monetary sanctions for Defendants' failure to obey prior court discovery orders.

On June

22, 2026, Defendants filed their opposition.

To date,

Plaintiff has not filed a reply.

II. Legal Standard

Cal. Code of Civ. Proc. § 2023.030

permits the Court, in its discretion, to impose the following types of terminating sanctions against anyone engaging in conduct that is a “misuse of the discovery process”:

(1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2) An order staying further proceedings by that party until an order for discovery is obeyed.

(3) An order dismissing the action, or any part of the action, of that party.

(4) An order rendering a judgment by default against that party.

(CCP § 2023.030(d).)

Conduct that is a “misuse of the discovery process” includes failing to respond or to submit to an authorized method of discovery and disobeying a court order to provide discovery. (CCP § 2023.010(d) and (g).) “Imposition of sanctions for misuse of discovery lies within the trial court’s discretion, and is reviewed only for abuse.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 991.) “The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery[.]” (Id. at 992.) Sanctions should be tailored to the harm created by the withheld discovery and should not be used as punishment. (Ibid.) The court should also consider whether the discovery misconduct was “willful” and whether the requesting party was prejudiced by the other’s failure to comply. (Do It Urself Moving & Storage, Inc. v. Brown, Leifer, Slatkin & Berns (1992) 7 Cal.App.4th 27, 37.) Courts have held that terminating sanctions are warranted when a party repeatedly fails to propound adequate discovery responses, even after the court imposed monetary sanctions. (Liberty Mutual Fire Ins. Co. v. LcL Administrations, Inc. (2008) 163 Cal.App.4th 1093.)

For example, in *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, the Court of Appeal held that five motions to compel created a record “replete with evidence of [appellant’s] failures to answer discovery requests.” (Id. at 279–280.)

Additionally, CCP § 2023.030(a) authorizes monetary sanctions for anyone engaging in misuse of the discovery process, including disobeying a court order to provide discovery. (See CCP § 2023.030(a).)

III. Discussion

Plaintiff brings this motion on the grounds that Defendants have failed to comply with the Court’s April 2026 Orders to serve responses, without objections, to Plaintiff’s discovery requests. (See Motion at p. 2.)

In opposition, Defendants argue that they have now served discovery responses on Plaintiff and that Plaintiff has not been prejudiced by the delay. (See Boykin Decl. Exh. A [responses].) Plaintiff has not replied to this argument.

The Court finds that Defendants have served substantive responses to Plaintiff’s discovery. (See Boykin Decl. Exh. A.) Therefore, the Court will not enter Defendants’ default because they have not created a record “replete with evidence of [their] failure[] to answer discovery requests.” (*Mileikowsky*, supra, 128 Cal.App.4th at 279-280.)

Notwithstanding the foregoing, for Defendants’ unjustifiable delay and costs incurred in bringing this motion, the Court awards Plaintiff sanctions in the amount of \$3,035.00 (representing a filing fee of \$60.00 and five hours of attorney work at the hourly rate of \$595.00). (See Friedman Decl. at ¶ 6.)

IV.

Conclusion

Based on the foregoing, Plaintiff’s motion is GRANTED in part and DENIED in part.

The Court finds that Defendants have substantially complied with its April 2026 Discovery Orders. Therefore, Plaintiff's request for Defendants' default is denied.

However, for the cost incurred in bringing this motion, Defendants and their counsel, jointly and severally, are to pay Plaintiff's counsel sanctions in the amount of \$3,035.00 within 20 days of this order.

Moving party to give notice.